

25STCV20850 25STCV20850

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-07-08

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Case Number: 25STCV20850 Hearing Date: July 8, 2026 Dept: 514

Tentative Ruling

The hearing on this demurrer to the Second

Amended Complaint was previously scheduled for June 11. The demurrer was fully briefed, but the Court continued the hearing to July 8 so that the parties could meet and confer as required by Code of Civil Procedure section 430.41.

On July 6, just two days before the

hearing, Plaintiff filed a new opposition to the demurrer. The Court assumes that this new opposition is intended to replace Plaintiff's prior opposition. (Otherwise, Plaintiff has filed two oppositions to a single demurrer, which of course is not permitted.)

The Court also notes that Plaintiff served

the new opposition by mail – and so it is likely that the service copy has not yet been received by Defendants.

The Court exercises its discretion to

accept Plaintiff's new opposition and to disregard the opposition previously filed by Plaintiff (on May 6).

The Court continues the hearing to August

___, 2026, at 8:30 a.m.

The Court grants leave to Defendants to

file and serve a new reply (in place of the first reply) by no later than five court prior to the hearing.

The Case Management Conference and Order to

Show Cause hearing are also continued to August __, 2026, at 8:30 a.m.

Defendants are ordered to give notice.